CV-22-003958 THE PEOPLE OF THE STATE OF CALIFORNIA vs ABARCA, FRANCISCO J – Plaintiff’s Motion for Summary Judgment – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Petitioner, the People of the State of California, seeks forfeiture of Respondent United States Currency in the amount of $4,213.00. Petitioner has met its burden of establishing that there is no triable issue of material fact and that the property is subject to forfeiture as a matter of law. (See Code Civ. Proc., § 437c(p).) The evidence submitted in support of the motion establishes that the respondent currency was furnished or intended to be furnished in exchange for a controlled substance within five years of its seizure. (SUF No. 1:1.) The evidence further establishes that the currency constituted proceeds traceable to an exchange for a controlled substance occurring within five years of its seizure. (SUF No. 1:2.) Petitioner also establishes that the currency was used or intended to be used to facilitate the sale or transportation of a controlled substance occurring within five years of its seizure. (SUF No. 1:3.) These facts are established through requests for admissions that were deemed admitted by court order. Specifically, the Court previously ordered that all requests for admissions served upon Real Party in Interest Francisco Javier Abarca were deemed admitted for all purposes. (SUF No. 2:1.) The admissions include that the respondent currency was furnished or intended to be furnished in exchange for a controlled substance, was proceeds traceable to an exchange for a controlled substance, and was used or intended to be used to facilitate a controlled substance offense. Petitioner has also established the required underlying criminal conviction. On April 5, 2024, Francisco Javier Abarca pled guilty/no contest to a violation of Health and Safety Code section 11351 in Stanislaus County Superior Court Case No. CR-22-010491. (SUF No. 2:2.) No opposition has been filed. Real Party in Interest has not produced any evidence creating a triable issue of material fact. The Court therefore finds that Petitioner has established all elements necessary to obtain forfeiture of the respondent property and is entitled to judgment as a matter of law. Accordingly, the Motion for Summary Judgment is GRANTED. The Court orders that Respondent United States Currency in the amount of $4,213.00 is forfeited to the State of California. The currency shall be distributed by Petitioner in accordance with Health and Safety Code section 11489. The case management conference set for September 21, 2026, at 1:30 pm in Department 22 is VACATED. The proposed order that was submitted in conjunction with the motion needs to be revised. The inclusion of a statement of dismissal is incorrect. The order should instead indicate that the Court is summarily granting the petition. Petitioner is directed to submit within five court days (1) a new proposed order and (2) a proposed formal judgment consistent with this ruling.

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CV-22-003958 – THE PEOPLE OF THE STATE OF CALIFORNIA vs ABARCA, FRANCISCO J – Plaintiff’s Motion for Summary Judgment – GRANTED, and unopposed.

Petitioner, the People of the State of California, seeks forfeiture of Respondent United States Currency in the amount of $4,213.00. Petitioner has met its burden of establishing that there is no triable issue of material fact and that the property is subject to forfeiture as a matter of law. (See Code Civ. Proc., § 437c(p).)

The evidence submitted in support of the motion establishes that the respondent currency was furnished or intended to be furnished in exchange for a controlled substance within five years of its seizure. (SUF No. 1:1.) The evidence further establishes that the currency constituted proceeds traceable to an exchange for a controlled substance occurring within five years of its seizure. (SUF No. 1:2.) Petitioner also establishes that the currency was used or intended to be used to facilitate the sale or transportation of a controlled substance occurring within five years of its seizure. (SUF No. 1:3.)

These facts are established through requests for admissions that were deemed admitted by court order. Specifically, the Court previously ordered that all requests for admissions served upon Real Party in Interest Francisco Javier Abarca were deemed admitted for all purposes. (SUF No. 2:1.) The admissions include that the respondent currency was furnished or

intended to be furnished in exchange for a controlled substance, was proceeds traceable to an exchange for a controlled substance, and was used or intended to be used to facilitate a controlled substance offense.

Petitioner has also established the required underlying criminal conviction. On April 5, 2024, Francisco Javier Abarca pled guilty/no contest to a violation of Health and Safety Code section 11351 in Stanislaus County Superior Court Case No. CR-22-010491. (SUF No. 2:2.)

No opposition has been filed. Real Party in Interest has not produced any evidence creating a triable issue of material fact. The Court therefore finds that Petitioner has established all elements necessary to obtain forfeiture of the respondent property and is entitled to judgment as a matter of law.

Accordingly, the Motion for Summary Judgment is GRANTED.

The Court orders that Respondent United States Currency in the amount of $4,213.00 is forfeited to the State of California.

The currency shall be distributed by Petitioner in accordance with Health and Safety Code section 11489.

The case management conference set for September 21, 2026, at 1:30 pm in Department 22 is VACATED.

The proposed order that was submitted in conjunction with the motion needs to be revised. The inclusion of a statement of dismissal is incorrect. The order should instead indicate that the Court is summarily granting the petition. Petitioner is directed to submit within five court days (1) a new proposed order and (2) a proposed formal judgment consistent with this ruling.